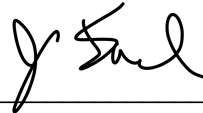


FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board to Assistant Deputy Commissioner Nancy Slater, Department Advocate's Office, September 11, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-24356 against Police Officer Matthew Giannella, Tax Registry No. 965135. The case was conferenced on July 27, 2023, before Assistant Deputy Commissioner of Trials Paul Gamble, who approved the negotiated penalty of Command Discipline Schedule (A) forfeiture of FIVE (5) vacation days. The Charges and Specifications will be dismissed for plea purposes.

A handwritten signature in black ink, appearing to read 'J. Darche', written over a horizontal line.

Jonathan Darche, Executive Director
New York City Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 17, 2024

Re: CCRB Case No. 201910281 (Incident Date: November 13, 2019) involving Police Officer Matthew Giannella, Tax No. 965135 (DADS No. 2021-24356)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving the above officer and has determined that his actions did not reflect the alleged misconduct, and therefore, no disciplinary action is warranted.

The Police Commissioner has reviewed and considered the totality of the circumstances in this matter and has determined Police Officer Giannella's actions do not warrant disciplinary action. In this matter, officers responded to a 911 call for an assault by a group of juveniles. Police Officer Giannella did not speak to any of the witnesses, he arrived as backup and relied on other officers who spoke to the witnesses.

When officers arrived on scene they observed a juvenile female who had just been assaulted with visible injuries. Within minutes the victim was transported to the hospital for immediate medical treatment. It was evident to the officers the importance to identify and apprehend the perpetrators of this crime. As the officers are speaking with the Assistant Principal, he describes this as an ongoing conflict, where "everybody" was suspended the day prior. The Police Commissioner has determined a reasonable officer would believe multiple people were involved in this assault. In Police Officer Emmanuel Maria's Body Worn Camera footage, the Assistant Principal identifies the juvenile by name and states "... she came with other people." Again, the Assistant Principal was alluding to multiple people involved in this assault. The Assistant Principal continued to say they were supposed to request the police to respond for dismissal, suspecting a possible fight would occur. In the same body worn camera footage, a witness and the Assistant Principal are showing officers video of the assault. The Assistant Principal identifies the alleged perpetrator by name and states "...definitely hits her." The witness states while playing the video "they are going to kick her," and "they are going to grab her from behind." Once more, these statements would lead a reasonable officer to believe multiple people were involved in this assault. The Assistant Principal is going to state two names of

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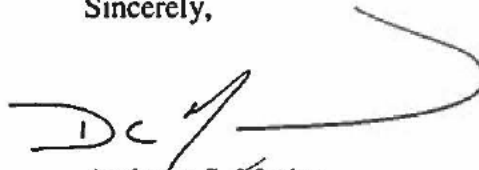
the alleged perpetrators about nine minutes into the body worn camera footage, however it is continuously stated throughout the footage they were with a group of people. Between the time of the assault, and the time the group of girls were stopped, the perpetrators could have easily switched or changed clothes. The Police Commissioner has determined the officers knew the importance of properly identifying the suspects through a show up.

Police Officer Emmanuel Maria conducts a canvass with the Assistant Principal in the backseat, and the Assistant Principal identifies the group of girls. The Assistant Principal describes one of the alleged perpetrators as "now she has a gray jacket on." Again, these statements to officers conducting their investigation would lead a reasonable officer multiple people were involved in this assault, and maybe the perpetrator changed their outfit. The Assistant Principal stated the names of two of the alleged perpetrators, however it was still reasonable given the above facts and circumstances for Police Officer Giannella to stop the entire group of girls with the alleged perpetrators, to ensure a proper identification was conducted. The Police Commissioner has determined these officers conducted a thorough investigation in determining who assaulted a minor near a school. Even while conducting the show up, the juveniles were hiding their faces, and hiding behind each other. When the Assistant Principal positively identified the two perpetrators, the other juveniles were immediately released.

The Police Commissioner also determined Police Officer Giannella will receive no disciplinary action for his threat of force against the complainant, who was under arrest at the time of the incident. The complainant was taken into custody after she was positively identified for committing the assault. The complainant was handcuffed and placed into the back of the police vehicle. During the transport, another individual opened the back door, and attempted to escape by running away. Police Officer Giannella ran after the complainant and threatened to use his taser in order to gain compliance and have her stop running. The moment the complainant was under arrest, she was now under the care and custody of the New York City Police Department. When she ran from the back of the police car, she put herself in an extremely dangerous situation, running handcuffed, through busy streets. Police Officer Giannella had a duty to protect her from hurting herself, as she placed herself into harm's way, by possibly being struck by a vehicle. The Police Commissioner has determined, that Police Officer Giannella's threats to use his taser against a prisoner who was attempting to escape police custody at the time, were reasonable.

Therefore, the Police Commissioner intends to dismiss the charges and specifications in this matter and Police Officer Giannella will receive no disciplinary action for the alleged misconduct.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Michael Martinez, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
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ARVA RICE
INTERIM CHAIR

January 26, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 201901281 v. Police Officer Matthew Giannella, Tax No. 965135
(DADS No. 2021-24356)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Andrew Marino, dated January 17, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the charges and take no disciplinary action against Police Officer Matthew Giannella. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Marino stated that after reviewing the recommendation of the CCRB, you determined that no disciplinary action against Police Officer Giannella is appropriate because of the totality of the circumstances. The CCRB disagrees with this conclusion and asks that the conditions of the Negotiated Settlement agreed upon by the CCRB and PO Giannella be imposed.

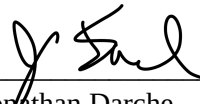
In this case, the initial radio run described an assault by a large group of juveniles, described as Black and Hispanic. The assistant principal provided the officers with descriptions of the two suspects who hit the assault victim, and those descriptions closely matched the appearance of two individuals named § 87(2)(b) and § 87(2)(b). None of the other girls in the group stopped by PO Giannella matched either of the descriptions. Given that the only reason provided by the officers for the stop of the remaining girls was their proximity to the two identified girls, the officers lacked the reasonable suspicion required to stop § 87(2)(b) and the other unidentified individuals. Thus, the stop of § 87(2)(b) and the other unidentified individuals by PO Giannella was unreasonable because he lacked reasonable suspicion to stop § 87(2)(b) and the other individuals.

With regards to the threat of force charge, PO Giannella exited the driver’s seat of the police vehicle in pursuit of § 87(2)(b). BWC shows PO Giannella saying, “Stop or I’ll tase you.” Next, an unidentified officer ahead of PO Giannella and § 87(2)(b) falls to the ground, though it is unclear what caused them to fall to the ground. § 87(2)(b) lands on the sidewalk on her left side. PO Giannella catches up to § 87(2)(b) and reaches his hand out toward her as she has rolled onto her back. PO Giannella says, “Get down or I’m going to fucking tase you.” While the use of some force may have

been reasonable given that § 87(2)(b) had been placed under arrest for assault and had fled from the back of a police vehicle, the Patrol Guide Procedure 221-08 prohibits the use of Tasers against rear-handcuffed prisoners. As § 87(2)(b) was rear-handcuffed when she fled and when officers caught up to and regained control of her, PO Giannella would have been unjustified in using his Taser against her and was therefore unjustified in threatening her with the use of his Taser.

Given the evidence in this case and the fact that PO Giannella has already accepted responsibility for his misconduct, then CCRB would ask that you approve the Negotiated Settlement of a dismissal of the charges and impose the recommended penalty of a Command Discipline A with the forfeiture of Five (5) vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board